

KEYSTONE CANINE TRAINING CLUB

CONSTITUTION AND BYLAWS

Revision 11-18-19

ARTICLE I. NAME. The legal name of the club is the "Keystone Canine Training Club," abbreviated as "KCTC" and referred to in this document as "the club."

ARTICLE II. OBJECTIVES.

- A. To do all in its power to maintain, encourage and promote the safety and training of all dogs.
- B. To do all in its power to encourage, support and educate in positive reinforcement training methods.
- C. To encourage, support and promote sportsmanlike competition at dog events, such as matches or trials.
- D. To provide information and education to the public on basic training, competition training, and showing in the ring, as well as, when possible, offer such shows to the public.
- E. Provide outreach, good-will and make a positive impact on our local community, through training, certification and animal-therapy events, and K-9ers events.

ARTICLE III. CLUB PROFITS.

The club shall not be conducted or operated for profit and no part of any profits or remainder or residue from dues or donations to the club shall benefit any member or individual.

ARTICLE IV. DOG FIGHTING AND ANIMAL ABUSE.

No individual or group of individuals known to: promote or support dog fighting, raise dogs for fighting; knowingly sell, give or trade dogs that will be used for fighting; condone or be associated with the facing off, game testing, rolling or pitting of dogs will be tolerated or allowed membership in this club. Animal abuse of any kind is unacceptable, and no individual who has been convicted on criminal charges of animal cruelty, abuse or neglect, or who has had an animal permanently and/or involuntarily removed from their care by a governmental agency/entity or animal rescue/welfare group due to cruelty, abuse or neglect, shall be allowed membership in this club.

ARTICLE V. MEMBERSHIP.

SECTION 1. ELIGIBILITY.

Membership shall consist of an individual or family and shall be open to all over the age of eighteen who own and work a dog or actively participate in club events. Applicants, either the Individual Applicant seeking Individual Membership or the individual designated as the Primary Applicant for a household seeking Family Membership, who have completed two distinct, full session KCTC classes, either in the same or different sessions, may apply for membership. A class repeated in two different sessions shall count as two distinct classes. However, two dogs enrolled simultaneously in a single class shall only count as one distinct class for purposes of membership eligibility. Membership eligibility shall not be based on the applicant's place of residence, race, color, religion, disability, nationality, gender, sexual orientation, or breed of dog. No member may transfer membership to any other person.

SECTION 2. TYPES OF MEMBERSHIP.

Section 2.1. Individual membership. Open to individuals 18 years of age or older. Each individual member shall be entitled to one vote at any club meeting at which he or she is present.

Section 2.2. Family membership. Open to any person in a household eighteen years of age or older. One family member shall be designated on the membership application or membership renewal form as the primary member. All family members who wish to have voting rights at meetings must be listed on the membership application form or membership renewal form. The primary family member must pay the regular dues, and each additional voting family member must pay 50% of the regular dues. Exception: The dues for each family member who is an Instructor or Assistant is 50% of the regular dues. Each paying family member shall be entitled to one vote.

Section 2.3. Junior Membership. Open to individuals 13 - 17 years old. Junior members shall be sponsored by an adult member, and the adult sponsor shall be identified on the membership application form. If the sponsor is not the parent, the parent shall consent to the sponsor, also on the membership application form. The Junior Membership fee shall be one-half of the Individual Membership fee.

Section 2.4. Social Membership. Open to those who were members within the last two years, but do not currently have a dog. Social Membership is intended for previous members who wish to remain active or participate in club events. The Social Membership dues shall be 50% of the regular member dues (Individual or Family). Social members are

not eligible to hold any offices or committee chairs, and may not enroll in classes with a dog unless they become a full member by paying the difference between the Social member dues and the full member dues. Each social member shall be entitled to one vote at any club meeting at which he or she is present.

Section 2.5. Member Dogs. A Member Dog is defined as a dog owned by and under the primary care of the current Member(s). All member dogs shall be listed on the members' application/renewal form, and all required records submitted to the Club for each dog. Members shall notify the Corresponding Secretary of any dog(s) they wish to add during the year, and provide a copy of all required records.

SECTION 3 MEMBERSHIP RESPONSIBILITIES.

Section 3.1 Rules and Regulations. Members shall familiarize themselves with and at all times adhere to the rules and regulations of the Club, which consist of the Constitution and Bylaws, and the Policies and Procedures adopted by the Board. Violation of the Club's rules and regulations may result in the initiation of disciplinary proceedings.

Section 3.2 Prompt Payment. Members shall promptly submit all Dues, Fees, or any monies owed to the Club in full.

Section 3.3 Volunteering. Members shall be required to volunteer for at least one club event or project each fiscal year.

Section 3.4 Vaccination Records. All Members shall provide a copy of vaccination records or titer reports for all member dogs.

Section 3.5 Good Standing. A member who is in compliance with all the requirements of Section 3 shall be considered a Member in Good Standing.

Section 3.6 Member Not in Good Standing. A Member not in compliance with all the requirements of Section 3 will be considered a Member Not in Good Standing and will not be eligible for membership rates for classes, will not be eligible to hold office or sit on a committee, will not be eligible for member benefits, or to vote.

SECTION 4. DUES.

Section 4.1. Amount. Membership dues shall be in an amount per year as determined by the Board of Directors.

Section 4.2. Payment of dues for applicants. The term of membership is one year, which runs from July 1 to June 30.. Dues for applicants for membership shall be included with the membership application. The next year's dues shall be prorated.

Section 4.3. Dues statement for members. During the month of May of each year, the Corresponding Secretary shall send to each member a statement of dues for the ensuing year. Dues shall be paid on or before July 1.

Section 4.4. Non-payment of dues. Membership dues shall be paid by July 1. No member may vote whose dues are not current. If dues are not paid by the due date, membership will be considered lapsed and the non-member rate will apply for all classes. A member whose dues are not paid for the current year shall not vote until their dues are paid in full

SECTION 5. APPLICATION FOR MEMBERSHIP.

Section 5.1. Submitting the application. Each applicant shall apply on a form approved by the Board of Directors. The form shall provide that the applicants abide by the Policies and Procedures and Constitution and Bylaws of the KCTC. The application form shall be endorsed by two members of club in good standing. The applicant shall submit the completed application along with a payment of annual dues to the Corresponding Secretary.

Section 5.2. Publication of applicants' names in the newsletter. The applicants' names shall be published in the next newsletter. Any member who has objections to the applicant has 30 days to forward objections to the Corresponding Secretary, who shall advise the Board of Directors of any objections.

SECTION 6. ELECTION TO MEMBERSHIP.

At the next membership meeting after the membership application is announced in the newsletter, the membership shall vote on the candidate's application. The Corresponding Secretary shall inform the applicant of the date of the meeting. One week prior to the meeting where the vote will occur, the Corresponding Secretary shall inform the membership via email of any objection raised to an applicant. Approval for membership shall require a two-thirds (2/3) affirmative majority of the members present. Candidates for membership shall be notified by mail, e-mail, or telephone of election results if they are not present at the meeting. Applicants are encouraged to attend the meeting during which they are voted upon. Members in good standing are entitled to the members' rate for class fees. Candidates for membership are also entitled to the member's rate for classes after paying for two classes at

the non-members rate, and after receipt of their application for membership by the Membership Chair.

SECTION 7. REJECTED APPLICATIONS. Rejected applicants will have their dues check returned to them. Rejected applicants may resubmit their application after six months. Any resubmitted application will be processed as an original application.

SECTION 8. TERMINATION OF MEMBERSHIP.

Section 7.1. Resignation. Any member who wishes to do so may resign in writing or by e-mail to the Corresponding Secretary. No member shall receive a refund of dues when resigning.

Section 7.2. Lapsing. A membership will be considered as lapsed and be terminated if the member's dues remain unpaid after the due date of July 1. The Board of Directors may grant a grace period of an additional 30 days, to July 31, for payment to any member who applies for an extension for extenuating circumstances. In no case may a person be entitled to vote at any club meeting whose dues are unpaid as of the date of the meeting. A Member whose dues have lapsed will be considered a Member Not in Good Standing until dues are paid in full.

Section 7.3. Expulsion. A membership may be terminated by expulsion as provided by Article XII.

Section 7.4. Reinstatement of expelled members. Any person whose club membership has been terminated via expulsion shall not be eligible for future club membership.

ARTICLE VI. FISCAL YEAR. The club's fiscal year shall begin on the first day of July and end on the last day of June.

ARTICLE VII. MEETINGS.

SECTION 1. REGULAR MEMBERSHIP MEETINGS. Regular meetings of members shall be held within the Commonwealth of Pennsylvania in Allegheny or Washington County as determined by the Board of Directors. A notice of the location, time and date of the meetings shall be published in the club newsletter.

SECTION 2. SPECIAL MEMBERSHIP MEETINGS. Special membership meetings may be called by the President or by a majority of the Board, or shall be called by the Corresponding Secretary upon receipt of a petition signed by 10 percent of the members of the club who are in good standing.

Such special meeting shall be scheduled to be held no later than twenty-one (21) days after the receipt of a qualifying petition. Such special meetings shall be held in the same geographical area as for regular meetings, at a time, place and date designated by the President. Written notice of such meeting shall be mailed (or e-mailed) by the Corresponding Secretary at least seven (7) days and not more than ten (10) days prior to such special membership meeting and shall state the purpose of the meeting. No other club business may be transacted during special membership meetings. A quorum for voting at such a meeting shall be 20% of the number of paying members of the club as of the end of the membership renewal period.

SECTION 3. BOARD MEETINGS. Board of Directors meetings shall be held in the Commonwealth of Pennsylvania in Allegheny or Washington County monthly at a location, time, and place to be determined by the Board. A notice of such meetings shall be published in the club newsletter. The quorum for such a meeting shall be a majority of the Board.

SECTION 4. SPECIAL BOARD MEETINGS. Special meetings of the Board may be called by the President or Corresponding Secretary. Such meetings shall be held in the Commonwealth of Pennsylvania in either Allegheny or Washington County at a time, date and place designated by the person authorized to call such a meeting. Notice shall be provided by the Corresponding Secretary at least seven (7) days and not more than ten (10) days prior to the meeting.

SECTION 5. VOTING. A quorum for voting at regular and special membership meetings shall be 20% of the number of paying members in Good Standing as of the end of the membership renewal period for that fiscal year. Each Club member in good standing whose dues are paid for the current year, and who is entitled to vote shall be entitled to vote at any meeting at which the member is present.

Proxy voting shall not be permitted. Voting for motions at special membership meetings, Officers and Board members, and election of new members shall be by secret ballot. All other voting shall be by a show of hands, except that voting by secret ballot may be used when deemed appropriate by the Board or requested by a member. Unless otherwise specified herein, a simple majority of the voting members present at a meeting is required to pass any motion.

ARTICLE VIII. DIRECTORS AND OFFICERS.

SECTION 1. BOARD OF DIRECTORS. The Board shall be comprised of the President, Vice-president, Recording secretary, Corresponding secretary/Membership secretary, Treasurer, Training director, Roster/Enrollment Coordinator, and one (1) director-at-large. In addition, the

immediate past President shall serve as a voting member of the Board. In the absence of an immediate past President, one additional director-at-large shall be elected to the Board.

SECTION 2. TERM OF OFFICE. The Officers and Board members shall serve for two-year terms or until their successors are elected. The President, Recording Secretary, Treasurer, and the Roster/Enrollment Coordinator shall be elected in odd-numbered years. The Vice-President, Corresponding Secretary/Membership Chair, Training Director, and the elected Director-at-Large shall be elected in even-number years. No person may hold more than one office per term.

SECTION 3. OFFICERS. The duties of the Officers are as follows:

Section 3.1. President. The President shall preside at all meetings of the Club and the Board and shall have any other duties specified by the KCTC Constitution and Bylaws. The President shall also distribute keys to the building, and shall maintain a list of people with keys; shall be the primary liaison with the landlord, shall provide guidance on class cancellations due to weather; shall provide input (as necessary) to the Training Director and call-back person, shall be the liaison with the cleaning personnel, shall advise the Maintenance Committee of any maintenance or repair work need to be done, shall issue agendas for membership meetings, shall write a column for the monthly newsletter, shall provide general overview of the website and ensure that it is up to date, and shall proofread meeting minutes prior to issue.

Section 3.2. Vice-president. The Vice-president shall have the duties and exercise the power of the President in case of the President's absence or incapacity, etc. The Vice-president shall serve as parliamentarian at meetings following Roberts Rules of order; shall be the Board's liaison with the various committees and recommend the formation of a committee if needed. The Vice-president shall (when necessary) update the tri-fold fliers and KCTC information sheets with tear-off tabs and maintain an adequate supply of both of these items for distribution at club events and by club members to veterinarians, groomers, etc., and shall have any other duties specified by the KCTC Constitution and Bylaws.

Section 3.3 Training director. The Training director shall direct the scheduling of all classes for each session, and produce an annual calendar of class dates and special events for the website. The Training Director shall direct curriculum, identify new classes to be added, and shall be available to counsel instructors. The Training Director shall also, when necessary, coordinate with the Roster/Enrollment Coordinator and

call-back person and the President regarding the addition of new classes or deleted classes.

Section 3.4. Treasurer. The Treasurer shall record all club income and expenses. He/she shall make timely deposits into KCTC's bank account. His/her books shall be open to the inspection of the Board. An audit or financial review shall be conducted annually. He/she shall report at every membership meeting the condition of the club's finances and a report of all income and expenses since the previous meeting and current balance.

Section 3.5. Corresponding secretary/Membership chairperson. The Corresponding secretary /Membership chairperson's shall prepare and mail (using electronic correspondence when appropriate) all club materials (including notification of the time and place of special membership and special Board meetings), to lend as much assistance as possible to committee chairpersons with mailings that pertain to the club's business, to maintain all correspondence of the club, to inform the newsletter editor of people applying for membership, to prepare and hand out a "New Members' Packet" to all new members, and to maintain the club's membership list and send a copy to each Board member and member (without email addresses), and shall change the website's Members-Only page password at the close of the membership renewal period.

Section 3.6. Recording secretary. The Recording secretary shall record the minutes and transactions of the Board and Membership meetings, and shall request the President to proofread the minutes prior to issue. For Board meetings, the request shall be within one week of the meeting. For membership meetings, the request shall be within two weeks of the meeting. He/she shall furnish a copy of the membership meeting minutes to the website editor for posting on the Members-Only page of the website, and to furnish the Board with a copy of the Board minutes within one week of receipt of the President's proofreading review comments. The Recording secretary shall have any other duties specified by the KCTC Constitution and Bylaws.

Section 3.7. Roster/Enrollment Coordinator. The Roster/Enrollment Coordinator shall prepare enrollment forms (on-line and hardcopy) and request the website editor to post both forms to the website in a timely manner, prepare instructions for using the on-line forms, prepare class rosters and distribute them to instructors, put hardcopies in the roster books at the club, notify people if their class payments are overdue, inform the website editor of waitlisted classes, coordinate with website/call back persons, respond to e-mails to the website "Contact Us" link, deliver all needed information to the Treasurer (payments, bills, receipts, etc.), and coordinate with the Training director.

Section 3.8. Directors at Large. Directors at Large may be assigned to special tasks (such as, community outreach, public relations, etc.) on an as-needed basis. The Director at Large whose term is not expiring shall be the Chair of the Nominating Committee for that year. The Directors at Large will review the Trial Procedures and maintain a time line file of when things need done.

Section 3.9. General Duties of Board Members. Board members shall attend Board, membership, and Special meetings, and communicate promptly with the Board and membership on pending club matters. An Officer or Board member who cannot attend a meeting shall notify the President of their inability to attend in advance of the meeting. An Officer or Board member missing three consecutive Board meetings without good cause may be asked by the Board via email and USPS mail to resign his/her position. If that person does not reply within 14 days with an explanation for the absences, his/her Board position will be terminated unless the Board votes to excuse the absence after receiving the explanation.

SECTION 4. POWERS OF DIRECTORS. The Board of directors shall have general management and control of the business and affairs of the club and shall exercise all powers that may be performed or exercised by the club.

SECTION 5. VACANCIES. If a vacancy occurs on the Board of directors, the position shall be filled by a member voted upon by a majority vote of the remaining directors after contacting the membership to determine interest in the position. Each director so elected shall serve in full capacity for the remainder of the original term.

SECTION 6. RESIGNATIONS. Any director may resign by giving written notification (letter or e-mail) to the President or Corresponding secretary of the club. The resignation shall take effect either at the date stated in the notification, or at the date of the notification if the notification does not contain a resignation date.

SECTION 7. CODE OF CONDUCT

Section 7.1 Conflicts Of Interest. No Member of the Board or any Officer or committee member shall personally profit or gain, directly or indirectly, because of his or her participation with the KCTC, without full disclosure and approval of the Board. Further, each such person shall disclose to the Board any personal interest that he or she may have in any matter pending before the Board and shall not participate in any decision on such matters. Any such disclosures shall be recorded in the minutes of the meeting. Also, each such person shall not obtain a list of members for personal or private solicitation purposes.

Section 7.2 Confidentiality. Board members, Officers, and committee members may have access to private or confidential information regarding personnel, financial, contractual, or legal matters that are needed for decision making. All such information shall be held in strict confidence and shall not be divulged to any outside party, including KCTC members, without authorization from the KCTC President or committee chair.

SECTION 8. COMPENSATION. The members of the Board shall serve without compensation for time or labor but may be compensated for reasonable and necessary expenses.

ARTICLE IX. ELECTION.

SECTION 1. ANNUAL ELECTION. The annual election of Officers and Directors shall be held during the May membership meeting by secret ballot.

SECTION 2. NOMINATIONS. No person may be a candidate for an Officer or Board position on the Board who has not been nominated.

Section 2.1. Nominating committee. The President shall appoint a three-person nominating committee, with one person as the Chair. The Chair shall be the Director at Large whose term is not expiring.

Section 2.2. Candidates.

A. Candidate Eligibility. An individual must be at least 18 years old and a member of the club in good standing for a period of one year as of the May meeting before he or she can be nominated to the Board of directors. A Board member need not be a resident of the Commonwealth of Pennsylvania.

B. Potential Candidates.

1. **January membership meeting.** At the January membership meeting, the Board shall announce that anyone interested in serving as an Officer or Board member for the following term or who would like to recommend a potential candidate should approach the nominating committee to express their interest and discuss the position prior to February 15.
2. The nominating committee shall approach any person they feel to be appropriate to determine if the person may be interested.

C. Announcement of Candidates.

1. **Announcement at the March membership meeting.** The nominating committee shall present a slate of Officers and Board members comprised of not more than two (2) candidates per office at the March meeting. The candidate will either accept or decline the nomination.
2. **Announcement in the KCTC newsletter.** The membership shall be notified of accepted nominations for proposed officers and Board members via the KCTC newsletter.

Section 2.3. Additional Nominations. Additional nominations may be made from the floor at the March meeting. The proposed candidate must be in attendance at the meeting and must accept or decline the nomination at the meeting. No person who has declined a nomination by the nominating committee may be nominated from the floor for that position.

- A. If the nominating committee nominates one candidate for each office, and no valid additional nominations are made at the March meeting, the nominating committee's slate of candidates shall be declared elected at the time of the annual election meeting and no balloting will be required.
- B. If two or more valid nominations are nominated for a position on the Board of Directors, the Corresponding secretary or his or her designated assistant shall prepare for each member in attendance and eligible to vote a ballot listing in alphabetical order all of the nominees for each position. Ballots shall be distributed at the annual election meeting.

SECTION 3. COUNTING THE BALLOTS. The election will occur by secret ballot. The Recording secretary, with the assistance of two members, will count and report the election results to the membership. All ballots shall be given to the Recording Secretary, who shall keep them for two years as part of the Club's official records.

SECTION 4. CHANGE OF OFFICER AND BOARD MEMBERS. Immediately upon conclusion of the election, the new officers and Board members shall assume their elected positions. The retiring officers and Board members shall turn over everything necessary to the new officers and Board members within two weeks of the election.

ARTICLE X. CONTRACTS AND LOANS.

SECTION 1. CONTRACTS. The Board may authorize any Officer or member to place a contract or make a purchase or place an order for a specific item or service in the name of the Club.

SECTION 2. LOANS. The club shall not take out any loans.

ARTICLE XI. COMMITTEES.

SECTION 1. The Board may each year appoint standing committees to help advance the work of the club in such matters as dog shows, field trials, obedience trials, agility trials, trophies, prizes, matches, membership and other areas. Special committees may also be appointed by the Board to assist with a special project.

- A. CHAIRPERSON: The committee chairperson shall obtain Board approval of any major purchases beyond items normally necessary (based on past experience) for similar events (such as food, ribbons, judge expenses, etc.).
- B. MATCH OR SHOW CHAIRPERSON: Shall be appointed by the Board. Chairpersons shall select and oversee the committees necessary to complete all tasks required to run the entire match or show.
- C. The Board may terminate committees. The Board may or may not choose successors.

ARTICLE XII. DISCIPLINE.

Section 1. Any member who violates the Constitution and Bylaws or Policies and Procedures of the club, or who takes an action detrimental to the club, is subject to disciplinary action as set forth below.

Section 2. Filing of Charges. Any member may bring charges against any club member for alleged violations of the Constitution and Bylaw or Policies and Procedures, or who takes an action detrimental to the club. Charges shall be brought no later than thirty (30) days after the charging member became aware that the violation or detrimental action occurred. Charges filed shall include the date and time of the alleged occurrence, the provisions of the Constitution and Bylaws or the Policies and Procedures alleged to be violated, or the nature of the detrimental action, a description of the circumstances and events surrounding the occurrence, the names of all persons involved and witnesses to the occurrence, and whether any statements, physical evidence or reports of the occurrence exist. If statements, reports or other documents exist, copies shall be included with the charges. The alleged charge shall be presented to the President and

Corresponding Secretary in writing along with a \$25.00 deposit. This deposit shall be forfeited if such charges are found to be without merit by the Board. The deposit shall be returned if the Board finds the charges to be warranted such that mediation or a Hearing Committee is necessary. If a member is bringing charges against multiple members a separate \$25.00 deposit shall be required for each member charged. Each charge will be considered individually and acted upon accordingly.

Section 3. Board Receipt of Charges. The Corresponding Secretary, or in the event of his/her absence or a conflict of interest the President, shall immediately upon receipt of said charges, but in no event later than five (5) days, provide written acknowledgement of their receipt to the charging member, send a copy of the charges to all members of the Board, and shall notify the alleged violator (s) of the charges. The written acknowledgment to the charging member shall state the date the charges and deposit were received and whether they were in compliance with the requirements of this Article, or in what manner the charges failed to conform.

Section 4. Board Review and Consideration of Charges. Charges shall be initially considered at a regular or special Board meeting held not fewer than seven (7) days or more than fourteen (14) days following the filing date of the charges. The President, or Vice-President in the event of a conflict of interest, shall fix the day for such a meeting. The Corresponding Secretary, or President in the event of a conflict of interest, shall then notify the Board of the date and time of the meeting. If deemed necessary, the Board may ask witnesses to the alleged event to attend the initial Board meeting. At the initial Board meeting, the Board shall discuss the charges to determine if further action is warranted.

Further action shall be warranted where the charges as alleged, if proven, would constitute a violation of the current Constitution and Bylaws or Policies and Procedures, or would constitute an action detrimental to the club. If further action is warranted, the Board shall determine if mediation is appropriate, as described below, or convene a hearing committee. The Board shall notify the charging member and the alleged violator of their decision within seven (7) days of this initial Board meeting.

In the event that a member of the Board is involved in the alleged charges, as the charging member, accused member or as a witness, that Board member is prohibited from further involvement in the consideration or disposition of the charges in their capacity as a Board member. The involved Board member shall not be a party to any Board discussions, meetings, communications, etc. regarding the charges. The involved Board member otherwise retains all rights of his/her Board position until the resolution of the charges.

Section 5. Mediation of Charges. The Board shall have the discretion to determine if mediation of the charges is appropriate. Where mediation is attempted, within (14) days of this determination the Board shall develop a plan to address the charges. The plan shall include an oversight period to be determined by the Board based upon the circumstances, but not to exceed one year, from date of acceptance. Within fourteen (14) days of developing the plan, the Board shall approach all parties involved in the incident with the mediation plan to determine its acceptability, and the plan must be accepted or rejected by all parties within fourteen (14) days. Once a mediation plan is accepted by all parties, discipline is no longer pending and the accused member is eligible for Board nomination. During the oversight period, violations of the mediation agreement will not be tolerated. Violations of the mediation agreement will warrant continuation of the original charges at the Board's discretion.

Section 6. Assembly of a Hearing Committee. If the Board determines that further action is warranted and mediation is either inappropriate or unsuccessful, the Board shall designate a hearing committee within fourteen (14) days of the determination that a Hearing Committee is necessary. The Hearing Committee shall consist of five current members in good standing appointed by the Board. If any member approached by the Board for appointment to the Hearing Committee has personal knowledge of the incident, or has a personal conflict of interest with any individual involved in the incident, this Member shall decline the appointment. The Corresponding Secretary shall then provide each committee member with a copy of the charges as well as the identities of any witnesses, or any reports or statements, etc. available concerning the incident.

Section 7. Responsibilities of the Hearing Committee. Within fourteen (14) days of their appointment, the Hearing Committee shall meet to review and discuss the charges and any written statements or reports that exist. At that time, the Hearing Committee shall select three potential hearing dates, at least one of which must be a weeknight, and none of which shall occur more than thirty (30) days from the date of their initial meeting. The Hearing Committee shall provide the Corresponding Secretary with the potential hearing dates, and the Corresponding Secretary shall notify all parties and witness involved of the potential dates. All parties shall inform the Corresponding Secretary and President of acceptable dates. When a final hearing date is selected by the President, the Corresponding Secretary shall notify all parties and necessary witnesses of the date, time and location of the hearing. The Accused may appear to defend him/herself, with or without council, and present witnesses in defense, but shall not be required to do so.

The Hearing Committee shall conduct the hearing with every effort to maintain fairness and impartiality. The Hearing Committee, either through a

designated individual by the Committee as a whole, shall question each witness as to the incident. Witnesses shall not be permitted to listen to other witnesses' testimony, with the exception of the Accused who, if present, shall be permitted to remain throughout the hearing and ask follow-up questions of each witness. If the Accused wishes to present witnesses, or to testify, this shall occur after all testimony and evidence of the charging party has been heard. At the conclusion of all testimony and evidence, the Accused shall be provided an opportunity to make a statement regarding the charges.

After hearing all testimony and evidence, the Hearing Committee shall meet to make a final determination as to whether the charges are sustained by the evidence and to make written findings. The Hearing Committee may do so immediately following the hearing, but in no event shall this final determination meeting occur more than seven (7) days after the Hearing. In the event that the Accused chooses not to appear and present a defense, the Hearing Committee shall still make a determination as to whether the charges are sustained by the evidence and the appropriate disciplinary measure.

Section 8. Voting of a Hearing Committee. A quorum for this committee shall be three members. After all charges and defenses are heard, the committee shall, after a majority vote, determine if the charges against the Accused are sustained. If the Hearing Committee determines that the charges are sustained, the Hearing Committee shall affix a penalty. For all potential penalties other than expulsion, penalty shall be set by majority vote. Where expulsion is sought, the penalty requires a unanimous vote.

The Hearing Committee shall make written findings of their determination on the charges and the penalty, indicating what facts they found to be true, and the factors determined to be important in their decision as to both the charges and penalty. These written findings shall be provided to the President and Corresponding Secretary within five (5) days of the Hearing Committee's decision. The Corresponding Secretary shall provide a copy of the written findings to all parties involved within seven (7) days.

Section 9. Potential Penalty. Where charges are found to be sustained by the Hearing Committee, Members are subject to discipline defined as follows:

A. Private Written Censure. A written formal account of the charges levied against the Member containing a summary of the evidence presented to the Hearing Committee and the Hearing Committee's findings of a violation of the current Constitution and Bylaws or Policies and Procedures, or action detrimental to the club, a copy of which shall be provided to the Board, the Charging Member, and the Disciplined Member, which shall serve as an official reprimand

for the offense. The Private Censure shall be retained by the Board and kept confidential

B. Public Censure. A written formal account of the charges levied against the Member containing a summary of the evidence presented to the Hearing Committee and the Hearing Committee's findings of a violation of the current Constitution and Bylaws or Policies and Procedures, or action detrimental to the club, a copy of which shall be provided to the Board, the Charging Member, and the Disciplined Member, which shall serve as an official reprimand for the offense. The Public Censure shall be retained by the Board and it shall be provided to the Membership in writing and by a reading at the next membership meeting.

C. Probation. A period not to exceed one calendar year wherein the disciplined Member shall not be eligible to hold office or committee chair positions, shall not be eligible to instruct or assist in teaching of classes. The Member shall otherwise maintain all privileges of the Club and shall comply with all Membership Responsibilities of Section 3. If the disciplined Member is subject to additional disciplinary action for new charges during the probation period, the disciplined Member's probation status shall be considered by the subsequent Hearing Committee when determining the appropriate disciplinary sanction for the subsequent offense.

D. Suspension. The removal of all Membership privileges of the disciplined Member from the Club for a period not to exceed one calendar year. During this time, the disciplined Member is not in Good Standing, and may not attend classes, seminars, dinners, banquets, or any other Club function. The disciplined Member must maintain current dues in order to have their membership privileges reinstated upon the completion of their suspension.

E. Expulsion – The permanent removal of all Membership privileges of the disciplined Member from the Club. The disciplined Member shall not be permitted to attend any Club classes, events or functions held at Club facilities thereafter.

F. Restitution – The requirement that the disciplined Member shall repay the Club for financial damages or losses caused to the Club due to the Member's violation, such as for theft from the Club, damage caused to Club facilities, or monies expended by the Club as an immediate result of the Member's violation. The amount of restitution shall not exceed the actual documented cost to the Club. Restitution may be ordered in conjunction with any other

disciplinary action as deemed appropriate by the Hearing Committee upon receipt of documentation of financial loss to the Club from the Board. The Board shall have the discretion to approve an appropriate payment plan for the payment of restitution should the disciplined Member request such consideration. The refusal to pay restitution may be subject to additional charges.

Section 10. Appeal. The Accused shall have the right to appeal the Hearing Committee's decision before a meeting of the full club membership. The Accused must notify the President in writing of his/her intent to appeal within 10 days of the Hearing Committee's ruling. (The Corresponding Secretary will act as the substitute in the event of the absence of, or a conflict of interest with the President). The President shall immediately confirm receipt of the intent to appeal with the Accused. The President shall affix the date, time and place for a Special Membership Meeting to consider the appeal, which shall take place no fewer than seven (7) days or more than thirty (30) days following the notice of intent to appeal. The President shall notify the Corresponding Secretary, who shall then notify the members of the date, time, and location of the Special Membership Meeting for the appeal hearing pursuant to the notification provision of Article VII, Section 2 and shall provide the members with a copy of the charges

Section 11. Appeal Hearing. Such a meeting shall be conducted in a manner similar to the hearing of the hearing committee. Members shall then vote by secret ballot to uphold or overrule the determination of the Hearing Committee. A two-thirds (2/3) majority of members present and voting shall be necessary to uphold the determination of the Hearing Committee. If the Accused chooses not to appear at the Appeal Hearing to present a defense, the appeal shall be deemed withdrawn and the determination of the Hearing Committee shall stand without a hearing or vote.

Section 12. Charges Against the Full Board of Directors:

The Board, upon receipt of charges brought against all of its members, shall call a Special Membership meeting within thirty (30) days wherein a Board Oversight Committee consisting of five members in Good Standing shall be selected to assume the Board's responsibilities as enumerated in Article XII, Discipline. All procedures for Discipline as set forth in Article XII shall be followed by the Board Oversight Committee.

In the event charges are brought or pending against the full Board during an election period, the election will be postponed until the resolution of said charges. The subsequent elections will result in

shortened terms to those positions up for election, which will end on the originally specified date.

Section 13. Immunity of Board Members for Official Conduct. Board members shall be immune from charges of a violation of the current Constitution and Bylaws or Policies and Procedures stemming from actions performed and decisions made in the course of their duties on the Board of Directors. This does not relieve Board Members from responsibility for actions outside the scope of their office.

ARTICLE XIII. CHANGES TO THE CONSTITUTION AND BYLAWS.

SECTION 1. PROCEDURE: The KCTC Constitution and Bylaws may be revised, amended or repealed as follows.

- A. Any member in good standing can propose revisions, amendments, or repeal of the KCTC Constitution and Bylaws. Such proposals shall be in the form of verbatim changes to the affected paragraphs (showing additions to and deletions from the version in effect) and shall state the reason for each change. The proposal shall be forwarded to the Corresponding secretary who, in turn, shall mail the proposal (regular mail or e-mail) to each member at least two weeks prior to the meeting at which a vote will be taken on the proposal. The mailing shall specifically notify the membership that a vote will be taken at the next meeting.
- B. The KCTC Constitution and Bylaws may be changed by a two-thirds (2/3) vote of the members present and voting at any regular meeting. Prior to the vote, the Board shall identify to the membership its agreement or disagreement with any specific changes.
- C. Every new version shall be identified by month, day, and date.

SECTION 2. RETENTION: The President shall retain the current copy of the Constitution and Bylaws with the club's official records.

ARTICLE XIV. DISSOLUTION.

The club may be dissolved at any time by the written consent of not less than two-thirds (2/3) vote of the membership. In the event of the dissolution of the club - whether voluntary or involuntary - the properties and monies of the club shall be given to a charitable dog organization as voted upon by the membership. Property may be sold and the resultant money given to a charitable dog organization.

ARTICLE XV. GENERAL PROVISIONS.

SECTION 1. CLUB PURCHASES: Any club purchases above an amount approved by the Board and published in the Policies and Procedures must be voted upon and approved by a majority of the Board. In addition, any club purchases above a second (higher) limit (also published in the Policies and Procedures) must be voted upon and approved by a majority at a membership meeting (regular or special).

SECTION 2. NEWS: Any news that is not presented at the membership meeting, when applicable and when deemed necessary, shall be presented to the membership via the monthly newsletter or by email.

SECTION 3. USE OF CLUB MAILING LIST: Requests for use of the club mailing list require Board approval.

SECTION 4. RENTAL OF KCTC BUILDING.

- A. KCTC Members, non-members, and outside organizations may rent the building for public or private events if approved by the Board, and pay a rental fee approved by the Board. The request for approval shall state the nature of the event, the approximate number of people and dogs (if any) who would attend, and the age range of any children who may attend. A KCTC member must be present during all events.
- B. Any equipment that is moved for the event (including tables and chairs) shall be returned to its original location. The areas used during the event shall be cleaned up after the event. Non-members and outside organizations shall send to KCTC a \$100 refundable deposit at least one week prior to the event, which shall be forfeited if the areas used are not left equal to or better than the way they were found (configuration and cleanliness).
- C. All non-members attending the event shall sign a Liability Waiver. Copies are available in the rolling cart in the office.
- D. If requested by the Board, outside organizations shall provide a copy of their liability insurance certificate, which shall be equal to or greater than the amount held by KCTC.

SECTION 5. PRIVATE TRAINING FOR PROFIT BY MEMBERS

Any member (or non-member) training a dog in KCTC's building for profit or by any profit making arrangement outside the jurisdiction of regular KCTC class instruction at any time, whether in scheduled KCTC class setting or private training situation, shall obtain Board approval and pay a fee determined by the Board.

SECTION 6. DISPLAY OF BUSINESS CARDS IN KCTC HEADQUARTERS:

Any person displaying business cards in the KCTC building must secure Board approval. Business cards shall be displayed under a disclaimer stating that such display does not imply KCTC endorsement.

SECTION 7. LIABILITY WAIVER

Anyone with a dog in the KCTC building (other than for KCTC classes) shall sign a Liability Waiver.

ARTICLE XVI. ORDER OF BUSINESS.

SECTION 1. At regular membership meetings of the club, the order of business shall be as follows, as appropriate:

- Call to order
- Minutes of the last meeting
- Report of the President
- Report of the Treasurer
- Report of Board members
- Report of committees
- Election of officers and Board (annual election meeting)
- Unfinished business
- New business
- Adjournment

SECTION 2. At the meetings of the Board, the order of shall be as follows, as appropriate, and any unfinished business or new business should be in accordance with an agenda prepared by the President based on input from Board members at least 48 hours prior to the meeting:

- Call to order
- Any corrections to the minutes of last meeting
- Report of the President
- Report of the Treasurer
- Report of Board members
- Report of committees
- Unfinished business
- New business
- Adjournment

ARTICLE XVII. RULES OF ORDER. The rules contained in the current edition of "Robert's Rules of Order, Newly Revised," shall govern the Club in all cases to which they are applicable and in which they are not inconsistent with these Bylaws and any other special rules of order the Club may adopt.

RECORD OF REVISION – 5/23/05

This revision was authored by Dan Goldberg, and approved by a vote at the membership meeting on May 16, 2005.

The major changes are as follows:

Added requirements for conformance to the United Kennel Club (UKC).

Revised the prerequisites for membership.

Formalized the expectation that each member volunteer for at least one club event per year.

Streamlined the membership application and voting process.

Clarified lapsing, termination, and expulsion procedures.

Clarified voting procedures during membership meetings.

Eliminated the conflict in the number of Board members. The number is eleven.

Revised the apprentice program for new instructors to make it applicable to all disciplines, not just obedience.

Revised the procedure for changing the Constitution and Bylaws.

RECORD OF REVISION – 1/10/06

This revision was authored by Dan Goldberg to incorporate comments from UKC. Individual changes are too numerous to list. Major changes include the following: Re-structured per UKC request to separate the Constitution from the Bylaws, and certain paragraphs were re-ordered.

Paragraphs related to training instructors were relocated to the Policies and Procedures document.

A prohibition on dog fighting was added.

Individual vs. family memberships, and their voting rights, were clarified.

Added a requirement that officers and Board members be at least 18 years old.

Changed vote on new membership re-applications from Board to membership.

Added a provision for 10% of the membership to petition for a Special Membership Meeting.

Assigned responsibility for the Policies and Procedures document to the Training Director, because that document only deals with the conduct of classes and instructors.

Added a job description for the Office Manager.

Required that the President appoint a chair for the Nominating Committee.

Required that if there is more than one nominee for a position, the membership must be given a ballot with each nominee listed.

Required the Office Manager to retain ballots as part of the club records.

Added a new Article on Contracts, Loans, and Checks.

Required UKC approval of the Constitution and ByLaws.

Required an original signed version be retained by the Office Manager.

Deleted the requirement that the Club maintain a Club-approved list of private for-profit trainers.

Relocated provisions for keys, formerly in the Policies and Procedures document, to the Office Manger section of the Bylaws.

Relocated provisions for the Apprenticeship Program to the Policies and Procedures document.

General editorial clean-up.

RECORD OF REVISION 2-19-10

This revision was authored by Dan Goldberg approved by the membership at a meeting on February 19, 2010.

The major changes are as follows:

Deleted all reference to United Kennel Club (UKC)
Combined the Constitution and Bylaws into one document.
Changed the name of the club to its current public name.
Limited voting rights to two votes per family.
Added a Junior Membership category and changed membership age limits.
Changed the membership application process and dues payment process to reflect current practice.
Added a one-year time delay for expelled members to reapply for membership.
Reduced the Board from 11 to nine members.
Staggered the Board terms so that not all Board members are up for election each year.
Added a new Code of Conduct to preclude personal financial gain and to preclude public disclosure of confidential information.
Revised the makeup of the Nominating Committee so that the committee will consist of three members (one of which must be a Board member) rather than the Board acting as the Nominating Committee.
Relocated the amount of threshold for club purchases not approved by the Board to the Policies and Procedures, and relocated the exceptions to the Policies and Procedures.
Required that a liability waiver be signed by those participating in all events at the club except for class enrollments.

RECORD OF REVISION 9-25-10

This revision was authored by Dan Goldberg approved by the membership at a meeting on September 15, 2010.

The major changes are as follows:

Clarified that only paying members in each family are entitled to vote.
Established dues for additional family members as 50% of the regular dues.
Prohibited expelled members from reapplying for membership.
Established a quorum for Special Membership Meetings as 20% of the paying members as of the end of the membership renewal period.
Allowed secret balloting at any meeting when requested by any member or deemed appropriate by the Board.

Required membership approval of large club purchases, the threshold amount to be specified in the Policies and Procedures. Initially the amount is set as \$1000.

RECORD OF REVISION 8-21-12

This revision was authored by Dan Goldberg and approved by the membership at a meeting on August 17, 2012.

The major changes are as follows:

Added a Social Membership category for current or previous members who do not have a dog and do not take classes. The dues are 50% of the regular dues. Clarified that a person must complete two classes prior to applying for membership.

To reflect current policy, stated that applicants for membership are eligible for members' rates for classes after taking two classes and after receipt of their application for membership by the Membership Chair.

Changed the dates of various actions regarding elections, to reflect an every-other month membership meeting schedule.

RECORD OF REVISION 12-14-15

This revision was to change the legal name of the club to Keystone Canine Training Club.

RECORD OF REVISION 3-21-16

This revision was authored by the Bylaws Committee (Janine Smith, Rod Sabatini, and Lucy McCloskey) for Articles I through VII, and Dan Goldberg (Article VIII, Section 3), on behalf of the Board, and approved by the membership at a meeting on March 20, 2016.

Articles I through VII were updated to better reflect our objectives, and to clarify certain requirements. In addition:

It prohibits animal abuse.

It adds definitions for "Member Dogs" and for members in "Good Standing."

It establishes a quorum for membership votes.

Article VIII, Section 3 (Officer Duties) was revised to more accurately describe the duties of each officer, and to level the workload of various officers.

RECORD OF REVISION 5-21-16

This revision was in two parts. Article XII (Discipline) was authored by the Bylaws Committee (Janine Smith, Rod Sabatini, and Lucy McCloskey, and edited

by Dan Goldberg (for the Board). This Article was completely re-written to add specific deadlines for each required action (bringing charges, holding hearings, etc.), and to add an arbitration procedure and alternative penalties. The second part of the revision was all remaining sections not revised in the 3-21-16 revision. Those changes consisted of minor updates, clarifications, and editorial changes. It was authored by Dan Goldberg. This revision was approved at the May 15, 2016 membership meeting.

RECORD OF REVISION 11-18-19

Article XV, Section 4, was revised to reflect our current practice on building rentals. It also added requirements for clean-up after any event, and a deposit fee. The changes were approved at the 11-17-19 membership meeting.